

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JUNE 25, 2026, AT 8:30 A.M.

6. S-CV-0040220 MURPHY, ANNA v. SMITH, CHARLEY

Personal appearances of the parties are required at the hearing.

Defendant's Motion for Writ of Possession for Real Property Located at 6010 and 6020 McCourtney Road, Lincoln, CA

Defendant moves for the court to issue a writ of possession for real property pursuant to Code of Civil Procedure section 715.010.

Code of Civil Procedure section 715.010, subdivision (a) provides: "A judgment for possession of real property may be enforced by a writ of possession of real property issued pursuant to Section 712.010." (Code Civ. Proc., § 715.010, subd. (a).) Here, defendant does not establish the court entered a judgment for possession of real property. Nor has a review of the court record revealed such a judgment.

Accordingly, defendant's motion is denied.

Plaintiff's request for sanctions is denied.

Plaintiff's Assertion of Statutory Right of Redemption and Declared Homestead Rights

Preliminary Matters

Plaintiff's request for judicial notice is granted.

Ruling on Motion

Plaintiff argues the statutory right of redemption has not passed because it runs from one year from the date of the sale rather than three months.

Code of Civil Procedure section 720.030 provides the two-track deadline for the redemption period: "(a) Three months after the date of sale if the proceeds of the sale are sufficient to satisfy the secured indebtedness with interest and costs of action and of sale. (b) One year after the date of sale if the proceeds of the sale are not sufficient to satisfy the secured indebtedness with interest and costs of action and of sale." (Code Civ. Proc., § 720.030, subds. (a)–(b).)

Here, the sale of the property occurred on November 13, 2025. Plaintiff, in her motion, concedes the sale produced surplus funds from the amount on the writ of

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sale. Therefore, the sale proceeds sufficiently satisfied the secured indebtedness with interest and costs of action and of sale such that the redemption period is three months from the sale of the property. In other words, the redemption period ended on February 13, 2026.

Plaintiff also argues she is entitled to the surplus funds pursuant to Code of Civil Procedure section 704.850. However, that section only applies if the homestead exemption applies. The court explicitly found the homestead exemption does apply on April 28, 2025. Nor does the attached accounting from plaintiff's federal case state the homestead exemption applies.

Accordingly, plaintiff's motion is denied in its entirety.

7. S-CV-0048518 THERAPUTIC HERBAL v. VINCENT MARKETING SVS.

Defendant Ross Vincent's Motion for Judgment on the Pleadings

Preliminary Matters

Defendant's requests for judicial notice are granted.

The court notes the Franchise Tax Board suspended plaintiff Therapeutic Herbal Company, LLC corporate status and thus it cannot prosecute or defend itself in this action. (*Center for Self-Improvement & Community Development v. Lennar Corp.* (2009) 173 Cal.App.4th 1543, 1552.) The court therefore declines to consider the opposition papers as they relate to plaintiff Therapeutic Herbal Company, LLC.

Ruling on Motion

Defendant moves for judgment on the pleadings as to the entirety of the first amended complaint ("FAC") pursuant to Code of Civil Procedure section 438. Defendant, as the moving party, may move for judgment on the pleadings if either (1) the court does not have jurisdiction over the subject matter in the complaint or (2) the complaint does not state facts sufficient to state a cause of action. (Code Civ. Proc. § 438, subds. (c)(1)(B)(i)–(ii).) "A motion for judgment on the pleadings is the functional equivalent of a general demurrer." (*Spencer v. City of Palos Verdes Estates* (2023) 88 Cal.App.5th 849, 861.) As such, the grounds for the motion for judgment on the pleadings must appear on the face of the complaint and any judicially noticeable documents. (*Ibid.*) Further, the court must accept as true all